

GNIOT Institute of Management Studies – PGDM (Batch 2023-25)**(TRIMESTER –III) END TERM EXAMINATION, APRIL -2024****INDUSTRIAL RELATIONS AND HR LEGISLATIONS****[Time: 3 Hours]****[Maximum Marks: 60]****Following are the course outcomes of the subject: - Industrial Relations and HR Legislations**

CO	Course Outcome (CO)
CO1	To understand facets of interactions between the employer and the employees and the resultant disputes.
CO2	To apprise various compensatory benefits available to workers under state insurance act, gratuity, wages, and minimum wages to workers & compensatory benefits available in case of employment injury in accordance with Indian statutes.
CO3	To acquaint with the basic legal framework envisaged under the statutes for welfare of employees in different modes.

(Note- Faculty can add the more CO's as per their subject.)**SECTION-A****Attempt all parts of the following: (Short Answer Type Questions, do not exceed 200 words)**

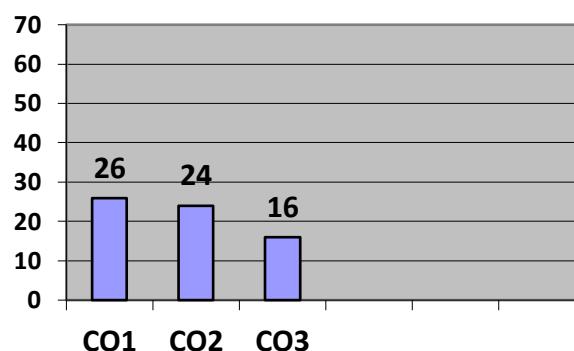
Q.1	Marks	CO
(A)	4	CO – 1
(B)	4	CO – 1
(C)	4	CO – 1
(D)	4	CO – 1
(E)	4	CO – 1

SECTION-B**Attempt all questions out of the following: (Long Answer Type Questions)**

Q. No	Marks	CO
2 (A)	6	CO – 2
2 (A)	6	CO – 1
2 (B)	6	CO – 2
2 (B)	6	CO – 2
3 (A)	6	CO – 2
3 (A)	6	CO – 2
3 (B)	6	CO – 2
3 (B)	6	CO – 2

SECTION-C**Attempt all parts of the following: (Caselet / Numerical)**

Q.4	Marks	CO
4 (A)	8	CO – 3
4 (B)	8	CO - 3

Course Outcome Wise Marks Distribution

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GNIOT Institute of Management Studies – PGDM (Batch 2023-25)

(TRIMESTER – III) END TERM EXAMINATION, APRIL - 2024

INDUSTRIAL RELATIONS AND HR LEGISLATION

[Time: 3 Hours]

[Maximum Marks: 60]

INSTRUCTIONS:

- (i) There are **THREE** sections in this question paper.
- (ii) Attempt questions from each section as per the directions.
- (iii) Make suitable assumptions wherever necessary.

SECTION-A

(Short Answer Type Questions, do not exceed 200 words)

Q.1. Attempt all parts of the following:

(5×4=20)

- (a) What do you mean by Industrial Relations? Also explain the nature of industrial relations.
- (b) Explain ‘Unitary Approach’ and ‘Pluralist Approach’ of Industrial Relations.
- (c) Explain the different type of wages mentioned under Minimum Wages Act, 1948.
- (d) Differentiate between ‘Contract of Employment’ and ‘Contract for Employment’.
- (e) Explain the scope and applicability of Employees’ Provident Funds and Miscellaneous Provisions Act, 1952.

SECTION-B

(Long Answer Type Questions)

Q.2. Attempt all questions of the following

(4×6=24)

- (a) Mr. X, an employee of ABC Ltd. Is working as a Beedi-Maker. He rolls the Beedi at his residence and then supplies them to his employer to the factory premises. State whether he will be covered under the definition of ‘employee’ or not as per the Minimum Wages Act, 1948.

OR

- (a) What do you mean by the ‘Compliance of Labour Laws’? Explain the implications/consequences/risks associated with Non-Compliance of Labour Laws in India.
- (b) Define the term ‘Employee’ as per Payment of Gratuity Act, 1972. Also explain whether the teachers working in an Educational Institutions covered under the definition of employee or not according to the Payment of Gratuity Act.

OR

- (b) Mr. Shyam, a worker in XYZ Ltd. Company is earning basic wages of Rs. 15,000. He is also getting D.A. of Rs. 5,000 per month and a retaining allowance of Rs. 4,000. Specify whether he is eligible for EPF contribution or not? Also calculate the Employer’s and Employee Contribution of EPF specified under the said Act.

Q.3. (a) Explain the term ‘Employment Injury’ as per Employees’ State Insurance Act, 1948.

OR

- (a) Explain the term ‘Temporary Disablement’, ‘Permanent Partial Disablement’ and ‘Permanent Total Disablement’ as per the ESI Act, 1948.

- (b) Define the term ‘Accident arising out of and in the course of employment’ according to Employee Compensation Act, 1923. The deceased was working in the office. Suddenly, a mad dog entered in the office and bit the deceased on 20.1.1993 and he died on 15.3.1993 due to hydrophobia. State whether the legal heirs of deceased employee is eligible for Employee Compensation or not?

OR

- (b) Define the term ‘Factory’ as per Factories Act, 1948.

SECTION-C

Jaggi & Co. had an establishment in Azadpur engaged in selling fruits. The inspector of the EPF Organization of the area visited the establishment with a view to ascertaining whether the establishment came under the purview of the EPF and MP Act, 1952. The employer of the establishment furnished the details regarding the establishment including the strength of the employees, 12 of whom were piece-rated casual workers employed by the contractor. He contended that these casual workers should not be counted for determining the required 20 employees for coverage under the Act. On the basis of the documents produced by the employer, the inspector, however, found that the establishment came under the purview of the Act and issued a letter to the employer accordingly. As the employer did not comply with the direction, proceedings were initiated against him.

The decision of the Regional Provident Fund Commissioner was endorsed by the Employees' Provident Funds Appellate Tribunal. Aggrieved by the decision of the Appellate Tribunal, the employer filed a writ petition before the Delhi High Court. The High Court held that Section 6 of the Act does not distinguish between employees engaged by the employer and those engaged by the contractor. Even the definition of 'employee' does not distinguish between a casual employee and a regularly engaged employee and instead includes employee employed by or through the contractor in connection with the work of the establishment. The claim of the employer that the twelve piece-rated workers working under the contractor ought to have been excluded while considering the applicability of the Act is contrary to the intendment of the Act and is rejected.

Q.4. Attempt all parts of the following:

(2×8=16)

- 4(a)** Does an establishment in an industry covered under the EPF and MP Act, 1952, employing 10 employees directly and 8 by two contractors each come under the purview of Employees' Provident Funds Scheme?
- 4(b)** Is an Apprentice covered under the definition of 'employee' under the EPF and MP Act, 1952?